

7.

CASE #	CASE NAME	HEARING NAME
CVME2600110	PARK VS K. HOVNANIAN'S FOUR SEASONS AT HEMET COMMUNITY ASSOCIATION	MOTION TO COMPEL ANSWER/ RESPONSE TO SPECIAL INTERROGATORIES SET ONE BY PARK

Tentative Ruling: Continued or O/C

8.

CASE #	CASE NAME	HEARING NAME
CVME2600110	PARK VS K. HOVNANIAN'S FOUR SEASONS AT HEMET COMMUNITY ASSOCIATION	DEMURRER ON 1ST AMENDED COMPLAINT FOR CIVIL RIGHTS OF PARK

Tentative Ruling: CONTINUE

Defendants failed to satisfy their obligation to meet and confer in person or by telephone with Plaintiff prior to filing the demurrer. Moving parties may not waive the requirements set forth in CCP § 430.41.

The hearing on the demurrer is continued to allow moving Defendant, K. Hovnanian's Four Seasons at Hemet Community Association, Inc. (HOA) and Defendant, FirstService Residential, Inc.'s (FirstService), an opportunity to satisfy their obligation to meet and confer and file the appropriate declaration(s) in accordance with CCP § 430.41. Counsel for Defendants, Lauren Peterkin, filed a meet and confer declaration that is not in compliance with CCP § 430.41. Specifically, Ms. Peterkin declares that on 3/31/26, she sent an email requesting Plaintiff to meet and confer about the proposed demurrer. (Dec. Peterkin ¶ 3.) Ms. Peterkin declares that the parties exchanged correspondence, but Plaintiff demanded a response to the FAC by the 4/10/26 deadline. (*Id.* ¶¶ 3-4.) Problematically, Ms. Peterkin never made a single phone call to Plaintiff to discuss the issues raised in the demurrer. Thus, she has not sufficiently complied with the statute because she did not speak with Plaintiff *in person or by phone* concerning the defects in FAC nor did she make sufficient effort to call Plaintiff. Therefore, substantive meet and confer efforts as to the FAC have not been engaged in by telephone or in person as required.

Accordingly, the hearing on the demurrer is continued to _____. Moving Defendants are ordered to meet and confer with Plaintiff by telephone or in person for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendants shall identify with legal support the basis of the alleged deficiencies in the subject pleadings. Plaintiff shall provide legal support for his position that the pleadings are legally sufficient or, in the alternative, how they may be further amended to cure any legal insufficiencies.

After meeting and conferring, Defendants shall, 10 days before the continued hearing date, set above do one of the following:

- (1) vacate the hearing on the demurrer;
- (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended pleading/claim for damages before the date set forth above; or
- (3) file with the court a declaration stating how the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve.

The Court will not accept further briefing.

CASE #	CASE NAME	HEARING NAME
CVME2600110	PARK VS K. HOVNANIAN'S FOUR SEASONS AT HEMET COMMUNITY ASSOCIATION	MOTION TO AMEND FIRST AMENDED COMPLAINT

Tentative Ruling: Continued (See above)

9.

CASE #	CASE NAME	HEARING NAME
CVME2605810	SALEK VS MERCEDES-BENZ	MOTION TO COMPEL ARBITRATION BY MERCEDES-BENZ

Tentative Ruling: DENY